

necessity; and secondly: *moral* necessity. As to the *first* a distinction prevails. Where two *executors* join in giving a discharge for money, and one of them only receives it, they are both answerable for it; because there is no necessity for both to join in the discharge, the receipt of either being sufficient: but if *trustees* join in giving a discharge, and only one receives, the other is not answerable, because his joining in the discharge was necessary. *Moral* necessity is from the usage of mankind, if the trustee acts as prudently for the trust as he would have done for himself, and according to the usage of business; as if a trustee appoint rents to be paid to a banker at that time in credit, but who afterwards breaks, the trustee is not answerable; so in the employment of stewards and agents: for none of these cases are on account of necessity, but because the persons acted in the usual method of business" (c). And Lord Loughborough in very similar terms observed, "If the business was transacted in the *ordinary* manner, unless there were some circumstances to create suspicion, surely the allowance is fair" (d). "Necessity," said Lord Cottenham, "which includes the *regular course of business*, will exonerate" (e). And Lord [*255] Redesdale, *in the same spirit observed, "An executor living in London is to pay debts in Suffolk, and remits money to his co-executor to pay those debts: he is considered to do this of *necessity*: he could not transact business without trusting some person, and it would be impossible for him to discharge his duty, if he is made responsible where he remitted money to a person to whom he would himself have given credit, and would in his own business have remitted money in the same way" (a).

Ex parte Griffin.—In conformity with these principles, where A. and B. were assignees of a bankrupt, and A. signed

(c) *Ex parte* Belchier, Amb. 219; [*Re* Speight, 22 Ch. D. 727; 9 App. Cas. 1.]

(d) *Bacon v. Bacon*, 5 Ves. 335.

(e) *Clough v. Bond*, 3 M. & Cr. 497.

(a) *Joy v. Campbell*, 1 Sch. & Lef. 341; and see [*Re* Speight, 22 Ch. D.

727; 9 App. Cas. 1;] *Bacon v. Bacon*, 5 Ves. 331, and compare *Chambers v. Minchin*, 7 Ves. 193, and *Langford v. Gascoyne*, 11 Ves. 335; and see *Davis v. Spurling*, 1 R. & M. 66; *Munch v. Cockerell*, 5 M. & Cr. 214; *Re Bird*, 16 L. R. Eq. 203.